

CITY CONTRACT NO. _____

This Agreement, entered into this _____ day of _____, 2008, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, hereinafter referred to as the "City," and the Peak Wellness Center, Inc., whose address is 2526 Seymour Avenue, Cheyenne, Wyoming, hereinafter referred to as the "Contractor."

W I T N E S S E T H:

WHEREAS, the City has need for certain human services in the community; and

WHEREAS, the Contractor is capable and desirous of performing said services.

NOW, THEREFORE, the parties mutually agree as follows:

1. SCOPE OF SERVICES: The Contractor shall, in a satisfactory and proper manner as determined by the City, perform the obligations set forth in Appendix A, attached hereto and incorporated by this reference, hereinafter referred to as the "Program."

2. TERM: The Contractor shall commence performance of this Agreement on the 1st day of July, 2008, and shall complete performance to the satisfaction of the City no later than the 30th day of June, 2009.

3. FEES: The City agrees to pay Contractor a total amount not to exceed **Sixteen Thousand Nine Hundred Forty-Five Dollars (\$16,945.00)** for the services set forth in Appendix A upon acceptance of performance by the City. Payment is to be made in one lump sum on or before the 15th day of October, 2008. If the scope of the Program changes, amendments to this Agreement shall be in writing.

Payment by the City to the Contractor for the services performed under the terms and conditions of this Agreement is contingent upon the availability of the City funds which are appropriated and allocated for payment of such obligation. The City shall notify the Contractor at the earliest possible time of any such shortage or depletion of funds.

4. RIGHT TO TERMINATE AGREEMENT: It is mutually agreed and understood that the City reserves the right to cancel this Agreement at any time, provided, however, that the City shall pay the Contractor on a pro rata basis for services rendered up to the time of cancellation. In the event of cancellation, all property and documents, data, studies and reports purchased, prepared or related to this Agreement shall become the property of the City. Notwithstanding the above, the

Contractor shall not be relieved of liability to the City for damages sustained by the City because of any breach of this Agreement by the Contractor, and the City may withhold any reimbursement to the Contractor for the purpose of set-off until such time as the exact amount of damages due the City from the Contractor is agreed upon or otherwise determined.

5. PUBLICATION AND PUBLICITY: The Contractor may publish results of its function and participation in the approved City program with a prior review by the City representatives serving on the Committee. A copy of the publication will be furnished to the City.

6. WYOMING LAWS GOVERN: The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming; and the courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement.

7. COVENANT AGAINST CONTINGENT FEES: The Contractor warrants that no person, selling agency or other organization has been employed or retained to solicit or secure this Agreement upon agreement or understanding for a commission, percentage, brokerage or contingent fee. For breach or violation of this warrant, the City shall have the right to annul this Agreement without liability or, in its discretion, to deduct from the compensation, or otherwise recover, the full amount of such commission, percentage, brokerage or contingent fee.

8. INDEMNITY: The Contractor agrees to defend, hold harmless and indemnify the City, its officials, employees and authorized volunteers against any and all claims arising out of the negligence of the Contractor, its agents, employees and volunteers, including any and all claims for premises liability, and for any and all other claims excepting those claims which are determined to be the sole negligence of the City, its officials, employees or authorized volunteers.

The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq.

9. EEOC COMPLIANCE: All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex. The parties further assure that they will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause therein.

10. ADA COMPLIANCE: The Contractor is notified that it must comply fully with all requirements of the Equal Employment Opportunity Commission (EEOC) and the Americans with Disability Act (ADA). If the Contractor or its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The Contractor shall be responsible for all such non-compliant action.

11. POLITICAL ACTIVITY PROHIBITED: None of the funds, materials, property or services contributed by the City or the Contractor shall be used in the performance of this Agreement for any partisan political activity, or to further the election or defeat of any candidate for public office.

12. RELIGIOUS ACTIVITY PROHIBITED: There shall be no religious worship, instruction or proselytization as part of or in connection with the performance of this Agreement.

13. COMPLIANCE WITH APPLICABLE LAW: The Contractor agrees to comply with all applicable local, state and federal laws, rules and regulations in the performance of this program. Failure to do so will give the City the right to immediately terminate this Agreement.

14. RECORDS AND ACCOUNTS: The Contractor shall maintain fiscal records and accounts in compliance with Wyoming law as deemed necessary and appropriate by the City to assure proper accounting for Program funds. These records shall be made available for audit purposes to the City and will be retained for three years after the expiration of the Agreement. The Contractor shall file with the City Treasurer an audited financial statement as completed each year with a copy to the Cheyenne City Council.

15. REPORTS AND INSPECTIONS: The Contractor shall make financial, program progress, and other reports as requested by the City and will arrange for on-site inspections by the City or representatives at the request of either.

16. COMMERCIAL GENERAL LIABILITY INSURANCE: The Contractor shall provide coverage against claims arising out of bodily injury, illness and death, and from damage to or destruction of property of others, including loss of use thereof, and including damage or injury stemming from completed operations, with minimum limits of Two Hundred Fifty Thousand Dollars (\$250,000.00) per claimant and Five Hundred Thousand Dollars (\$500,000.00) per occurrence.

A. The City of Cheyenne shall be named as an additional insured on the Contractor's

general liability insurance policy and the Contractor shall provide the City with a copy of an endorsement policy providing this coverage for the term of this Agreement.

B. It is understood and agreed that the Contractor's insurance policy is primary and not contributory. The insurance certificate shall be submitted to the City prior to commencement of this Agreement. The insurance certificate provided by the Contractor must include a clause stating that the insurance may not be canceled, amended or allowed to lapse until the expiration of at least thirty days advance written notice to the City of Cheyenne.

17. CHANGES, MODIFICATION, REVISIONS AND AMENDMENTS: The Contractor and the City may from time-to-time request changes in the scope of the services, etc., to be performed under the terms and conditions of this Agreement and shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

18. SUCCESSORS AND ASSIGNS. It is mutually agreed and understood that all of the covenants and agreements contained herein shall extend to and be obligatory on the successors and assigns of the respective parties.

19. EMBODIMENT OF AGREEMENT: This Agreement contains the entire understanding of the parties, and there are no other terms or conditions, oral, or written concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties hereto have executed this instrument on the day and year first above written.

CITY OF CHEYENNE

BY:

Jack R. Spiker, Mayor

(SEAL)
ATTEST:

Carol A. Intlekofer, City Clerk

PEAK WELLNESS CENTER, INC.

BY:

Director

APPENDIX “A”

PEAK WELLNESS CENTER, INC.

Mission: To provide the services of mental health professionals for emergency mental health needs.

<u>FUNDING REQUEST</u>	<u>TOTAL BUDGET % OF THE REQUEST</u>	<u># OF CLIENTS BENEFITTED OR STATISTICS</u>
City of Cheyenne \$16,945.00	14.8	3,600 contacts 184 emergency detentions

Service:

Peak Wellness Center Emergency Mental Health Services operated 24 hours a day, 7 days a week. An agreement with the Cheyenne Police Department provides for Peak staff to assist law enforcement officers with all emergency mental health detentions, thus reducing the amount of time that officers are required to wait in the hospital emergency room.

This service is available to anyone in need and is accessed by calling Peak Wellness Center. After-hours calls go to an answering service that connects the caller with the on-call therapist. Due to the increasing number of calls and the speciality skills required for this emergency service, we have assigned the responsibility for it to our Intensive Case Management Team during the after-hours coverage times. This has proved to be very advantageous to clients, law enforcement and other referral sources, hospital staff, and Center staff.